

VibePick - Terms of Service

IMPORTANT: Please read these Terms of Service carefully before using VibePick. By creating an account or accessing the platform, you agree to be bound by these terms. If you do not agree, you must not use the platform.

1. Acceptance of Terms

These Terms of Service constitute a legally binding agreement between the user and the VibePick project author. By accessing or using the VibePick platform in any way, including creating an account, browsing content, or interacting with any feature, you confirm that:

1. You have read, understood, and agree to be bound by these Terms;
2. You have the legal capacity to enter into a binding agreement;
3. Your use of VibePick does not violate any applicable law or regulation.

If you do not meet these requirements or do not agree to these Terms, you must immediately cease using the platform and delete your account.

2. Description of Service

VibePick is a mood-aware movie recommendation platform developed as an academic thesis project. The platform provides personalised film recommendations based on a user's current emotional state, genre preferences, viewing history, and streaming subscriptions.

VibePick is currently in a research and prototype phase. Its primary purpose is to evaluate the effectiveness of mood-aware recommendation algorithms as part of an academic study. Features, functionality, and availability may change at any time without prior notice. VibePick

is NOT a mental health tool and does not provide psychological or medical advice. If you're experiencing mental health concerns, please consult a qualified healthcare professional.

2.1 Core Features

- Mood-based film recommendation (mood-aware mode)
- Genre-preference and viewing-history based recommendation (baseline mode)
- Wishlist and watch history management
- Mood history calendar
- Streaming platform preference management
- Personal data export and account management

2.2 Platform Status

VibePick is an academic prototype and is NOT a commercial service. It is provided free of charge for the purposes of user research and academic evaluation. There are no paid tiers, subscription fees, or premium features.

3. User Accounts

3.1 Registration

To use VibePick you must create an account by providing your full name, a valid email address, and a password. You agree to provide accurate, current, and complete information during registration and to keep that information up to date.

3.2 Account Security

You are responsible for maintaining the confidentiality of your account credentials and for all activity that occurs under your account. You must:

- Choose a strong, unique password that you do not use for other services;
- Not share your account credentials with any third party;

- Notify VibePick immediately if you become aware of any unauthorised use of your account or any other breach of security.

VibePick cannot and will not be liable for any loss or damage arising from your failure to maintain the security of your account.

3.3 Account Termination by User

You may delete your account at any time by navigating to Your Account > Delete Account. Account deletion is immediate and permanent. All personal data associated with your account will be deleted in accordance with our Privacy Policy. This action cannot be undone.

3.4 Account Suspension or Termination by VibePick

VibePick reserves the right to suspend or terminate your account, without prior notice or liability, if we reasonably believe that you have violated these Terms, engaged in fraudulent or illegal activity, or if continued provision of the service is not possible for technical or operational reasons.

4. Acceptable Use

You agree to use VibePick only for lawful purposes and in accordance with these Terms. You must NOT:

- Use the platform in any way that violates any applicable local, national, or international law or regulation;
- Transmit or submit any content that is unlawful, harmful, threatening, abusive, harassing, defamatory, obscene, or otherwise objectionable;
- Impersonate any person or entity, or falsely state or misrepresent your affiliation with any person or entity;
- Attempt to gain unauthorised access to any part of the platform, its servers, databases, or any system connected to it;

- Engage in any activity that could disable, damage, overburden, or impair the proper functioning of the platform;
 - Use automated means (bots, scrapers, crawlers) to access the platform or extract data without our express written permission;
 - Reverse-engineer, decompile, or disassemble any part of the platform's software;
 - Use the platform to harvest or collect personal data about other users;
 - Circumvent, disable, or interfere with security-related features of the platform;
 - Upload, transmit, or distribute malicious code, viruses, or any other harmful software.
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5. Intellectual Property

5.1 VibePick Platform

The VibePick platform, including its source code, design, user interface, text, graphics, and all other content created by the VibePick project team, is the intellectual property of the respective authors and is protected by copyright law. All rights are reserved.

Nothing in these Terms grants you any right, title, or licence in or to the platform's intellectual property, except for the limited right to use the platform in accordance with these Terms.

5.2 Film Metadata

Film titles, descriptions, poster images, and other metadata displayed on VibePick are sourced from The Movie Database (TMDB) and are subject to TMDB's own Terms of Use and licensing conditions. VibePick does not claim ownership of this content.

5.3 User Content

By using VibePick you do not submit any original creative content. The data you provide (mood logs, watchlist, ratings) is personal data governed by our Privacy Policy, not user-generated content in the intellectual property sense.

6. Data Protection and Privacy

Your privacy is important to VibePick. The collection, use, storage, and deletion of your personal data is governed by the Privacy Policy, which is incorporated into these Terms by reference and forms part of this agreement.

By using VibePick you acknowledge that you have read and understood our Privacy Policy and consent to the processing of your personal data as described therein. Your data will be processed in accordance with the General Data Protection Regulation (EU) 2016/679 (GDPR) and applicable Romanian data protection law.

You have various rights in relation to your personal data, including the right to access, rectify, and erase your data. These rights can be exercised through the in-app tools described in the Privacy Policy.

7. Research Participation

By using VibePick, you acknowledge and agree that your usage data (including recommendation interactions, mood logs, and helpfulness ratings) will be used as part of an academic research study evaluating mood-aware recommendation systems.

7.1 Nature of Research

The research aims to compare the effectiveness of mood-aware versus baseline movie recommendations. Your interaction data will be analysed as part of this comparison. Individual data will not be published; only anonymised and aggregated findings will appear in the thesis and any academic publications.

7.2 Withdrawal from Research

You may withdraw from the research study at any time by deleting your account. Upon deletion, all personal data is removed from the system. Note that anonymised, aggregated data already incorporated into research analysis cannot be retroactively removed, as it is not linked to your identity.

7.3 User Study Sessions

If you participate in a structured user study session, additional terms specific to that session may apply. Participants in structured sessions will be informed separately and may be asked to provide additional consent in accordance with institutional research ethics guidelines.

8. Third-Party Services

VibePick integrates with the following third-party service:

TMDB API	Used to retrieve publicly available film metadata. No personal data is transmitted to TMDB. TMDB's Terms of Use apply to the film metadata displayed on the platform.
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VibePick is not responsible for the content, privacy practices, or terms of any third-party services. Any interaction you have with third-party services is governed by their own terms and policies.

9. Disclaimers and Limitation of Liability

9.1 Limitation of Liability

To the fullest extent permitted by applicable law, VibePick shall not be liable for any indirect, incidental, special, consequential, or punitive damages, including loss of data, loss of profits, or any other intangible losses, arising out of or in connection with your use of or inability to use the platform.

In jurisdictions that do not allow the exclusion or limitation of certain damages, VibePick's liability shall be limited to the maximum extent permitted by law.

9.2 Film Recommendations

Film recommendations generated by VibePick are provided for entertainment and research purposes only. It is not guaranteed that any recommendation will be to your taste, suitable for

your age group, or available on your specified streaming platforms at any given time. Streaming availability is subject to change by the platform providers.

10. Modifications to the Service and Terms

10.1 Service Modifications

The right to modify, suspend, or discontinue any aspect of the VibePick platform at any time, with or without notice is reserved. This includes adding, changing, or removing features, altering the recommendation algorithm, or shutting down the platform entirely upon conclusion of the research project. VibePick shall not be liable to you or to any third party for any modification, suspension, or discontinuation of the service.

10.2 Terms Modifications

The right to update or modify these Terms at any time is reserved. The "Last Updated" date at the top of this document will reflect the date of the most recent revision. Material changes will be communicated to users where reasonably practicable. Your continued use of VibePick after any changes to these Terms constitutes your acceptance of the updated Terms.

11. Entire Agreement

These Terms, together with our Privacy Policy and GDPR Notice, constitute the entire agreement between you and VibePick regarding your use of the platform, and supersede all prior and contemporaneous agreements, understandings, and representations relating to the same subject matter.
